



Procedure No: EXP202313835 (PS/00574/2023)

SANCTIONING PROCEDURE RESOLUTION

From the actions carried out by the Spanish Agency for Data Protection and based on the following:
BACKGROUND

FIRST: On 15/08/23, Ms. A.A.A. (the complainant) submitted a complaint to the Spanish Agency for Data Protection.

The complaint is directed against the entity ALL IN DIGITAL MARKETING SL, with CIF: B88369178 (the respondent), for the alleged violation of Law 34/2002, of July 11, on Information Society Services and Electronic Commerce (LSSI).

The facts stated by the complainant in her submission are that she has requested on five or more occasions the removal of her name from the company's commercial content distribution list, having received confirmation on all occasions, but upon checking that she continued to receive commercial emails from this company, she also sent them an email on 21/07/23. Nevertheless, she continues to receive advertising via email. Along with the complaint, the following documentation is attached:

- Dated 06/07/23 and 21/07/23, copies of the emails sent by the respondent from the email address allzoners@allzone.es to the email address ***EMAIL.1, containing commercial or advertising messages:

- o "(...) We want to thank you for your trust; for this, we can think of no better gift than offering you the chance to win this incredible prize. The pack includes (...)"

- Dated 21/07/23, a copy of the email sent by the complainant from the email address A.A.A. <***EMAIL.1 to the email address allzoners@allzone.es requesting that they no longer send her advertising emails:

- o "I have unsubscribed from your newsletter distribution list twice because I do not want to continue receiving emails. In both cases, it has been useless because you have ignored it and continued sending me emails. I indicate through this means that I do not want to continue receiving your commercial communications (...)"

- Three confirmation messages indicating successful unsubscription:

- o "You have been unsubscribed successfully."

- Dated 01/08/23, 08/08/23, 10/08/23, 15/08/23, 17/08/23, 24/08/23, 29/08/23, and 01/09/23, copies of the emails sent by the respondent from the email address allzoners@allzone.es to the email address ***EMAIL.1, containing commercial or advertising messages:

- o "(...) This is a unique opportunity for those who wish to acquire their favorite products at affordable prices. Now we help you with your order! (...)"

SECOND: On 06/10/23, in accordance with the provisions of Article 65.4 of Organic Law 3/2018, of December 5, on Personal Data Protection and Guarantee of Digital Rights (LOPDGDD), this Agency forwarded the complaint to the respondent for analysis and to report back within one month regarding the matters raised in the complaint.

The forwarding, which was carried out in accordance with the rules established in Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations (hereinafter, LPACAP) via electronic notification, was not collected by the responsible party within the availability period, being understood as rejected in accordance with the provisions of Article 43.2 of the LPACAP on 17/10/23, and the forwarding was reiterated by the same means, which was collected this time on 19/10/23, as evidenced by the acknowledgment of receipt in the file. No response has been received to this forwarding.

THIRD: On 15/11/23, in accordance with Article 65 of the LOPDGDD, the complaint submitted by the complainant was admitted for processing.

FOURTH: On 08/01/24, the Director of the Spanish Agency for Data Protection decided to initiate sanctioning proceedings against the entity ALL IN DIGITAL MARKETING SL, with CIF: B88369178, in accordance with the provisions of Articles 63 and 64 of the LPACAP, for the alleged infringement of Article 21 of the LSSI, classified as minor under Article 38.4.d) of the same regulation.

In the opening agreement, it was determined that the sanction that could correspond, given the

existing evidence at the time of opening and without prejudice to what results from the instruction, would amount to a total of 5,000 euros (five thousand euros).

FIFTH: Notified of the aforementioned initiation agreement in accordance with the rules established in the LPACAP, the respondent submitted a written statement on 07/02/24, in which it essentially stated the following:

- That the complainant registered on the website www.allzone.es on 25/03/23, to place an order accepting all general purchase conditions, privacy policy, subscription to newsletters, and offers.
- That the procedure enabled for exercising the right of opposition is to send an email to the address delegadodatos@allindigital.es and emphasizes that the complainant did not carry out this process on any occasion.

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- That the claimant also had the possibility to access their customer area and unsubscribe from commercial communications, newsletter subscriptions, and associated offers.
- That the claimant should have requested the unsubscribe in the manner indicated in the attached annexes (which was not done correctly according to our data policy), but subsequently accessed their customer area again and re-subscribed to commercial communications, and for this reason, advertising information was sent again.
- That the email that the claimant indicates having sent to allzoners@allzone.es on 21/07/23 is a no-reply email that only sends commercial communications but does not receive information in any case.
- That it was not until 13/09/23 that the claimant contacted the company via email at clientes@allzone.es and indicated their desire to unsubscribe from the subscription. The email was responded to confirming the process to the customer, and the unsubscribe was made definitive.

SIXTH: On 14/02/24, a resolution proposal was made in the sense that the Director of the AEPD should sanction the responding party for violating the provisions established in Article 21 of the LSSI, classified as minor in Article 38.4.d), with a sanction of 5,000 euros (five thousand euros).

SEVENTH: On 23/02/24, the responding party submitted a written statement of allegations to the resolution proposal reiterating the same points raised in the document submitted on 07/02/24, as allegations to the initiation of the file:

“We reiterate once again the allegations already presented to emphasize that they should be studied and considered since, as we see in your resolution, they have not been taken into account, especially point 4 where it indicates how the user has the possibility to subscribe and unsubscribe from our newsletter and associated offers as many times as they wish by entering their customer area, and we understand that this has been the reason for the interruption and renewal in the sending of commercial communications, a fact that is demonstrated in the attached DOC4...”

From the actions taken in this procedure and the documentation in the file, the following has been established:

PROVEN FACTS

First: The file contains copies of the emails dated 06/07/23 and 21/07/23, sent by the respondent from the email address allzoners@allzone.es to the email address ***EMAIL.1, containing commercial or advertising messages:

“(...) We want to thank you for your trust; for this, we can think of no better gift than to offer you the chance to win this incredible prize. The pack includes (...)”

Second: The file contains a copy of the email dated 21/07/23, sent by the claimant from the email address A.A.A. ***EMAIL.1 to the email address allzoners@allzone.es requesting that no more advertising emails be sent to them:

“I have unsubscribed from your newsletter distribution list twice because I do not want to continue

receiving emails. In both cases, it has been useless because you have ignored it and continued sending me emails. I indicate through this means that I do not want to continue receiving your commercial communications (...)."

Third: The file contains copies of three confirmation messages indicating that the unsubscribe was successful:

"You have been unsubscribed successfully."

Fourth: The file contains copies of the emails dated 01/08/23, 08/08/23, 10/08/23, 15/08/23, 17/08/23, 24/08/23, 29/08/23, and 01/09/23, sent by the respondent from the email address allzoners@allzone.es to the email address ***EMAIL.1, containing commercial or advertising messages:

(...) This is a unique opportunity for those who wish to acquire their favorite products at affordable prices. Now we help you with your order! (...)

LEGAL GROUNDS

I

Competence.

According to the provisions established in Article 43.1 of the LSSI and the provisions in Articles 47, 48.1, 64.2, and 68.1 of the LOPDGDD, the Director of the Spanish Agency for Data Protection is competent to initiate and resolve this procedure.

Furthermore, Article 63.2 of the LOPDGDD states that: "The procedures processed by the Spanish Agency for Data Protection will be governed by the provisions of Regulation (EU) 2016/679, this organic law, the regulatory provisions issued in its development, and, as long as they do not contradict them, subsidiarily by the general rules on administrative procedures."

The fourth additional provision "Procedure in relation to the competencies attributed to the Spanish Agency for Data Protection by other laws" establishes that: "The provisions in Title VIII and its development regulations will apply to the procedures that the Spanish Agency for Data Protection must process in the exercise of the competencies attributed to it by other laws."

II

Response to the allegations made

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In the complaint submitted by the claimant, it is stated that they have requested their removal from the company's commercial content distribution list five times or more, having received confirmation each time. However, upon checking that they continued to receive commercial emails from this company, they also sent an email on 21/07/23 to the address allzoners@allzone.es, but they continue to receive advertising via email. The complaint is accompanied by:

- A copy of the advertising emails received on 06/07/23 and 21/07/23.
- Confirmation messages indicating that they have successfully unsubscribed from the commercial communication service.
- A copy of the email sent on 21/07/23 to the address allzoners@allzone.es requesting that no further advertising emails be sent.
- A copy of the advertising emails received on 01/08/23, 08/08/23, 10/08/23, 15/08/23, 17/08/23, 24/08/23, 29/08/23, and 01/09/23.

For its part, the entity being complained against alleges that the procedure established for the exercise of users' rights is through the email indicated in the "Privacy Policy" on the website <https://allzone.es/> (<https://allzone.es/content/2-politica-de-privacidad>). That is, according to the entity being complained against, to unsubscribe from the newsletter, a request must be sent via email to delegadodatos@allindigital.es, claiming that the claimant never used this process. It is also stated that the claimant had the option to access the client area and process their unsubscription through this

area, but that the process used to unsubscribe via the email allzoners@allzone.es could not be completed correctly as this email is a "no-reply" address that only sends commercial communications and does not receive information in any case.

Notwithstanding the above, it should be noted that the claimant initially proceeded to unsubscribe through the option that appeared in the advertising emails sent. That is, through the link available at the end of each email, enabled for this purpose:

"You receive this email because you subscribed to the All Zone list or because you provided your email address at some event, and we believe that the information provided may be of interest to you."
"

This procedure, as evidenced by the documentation provided by the claimant, was carried out to request that no further commercial communications be sent via email, receiving confirmation of the unsubscription from the entity complained against on three occasions:

"You have been successfully unsubscribed."

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Subsequently, according to the claimant, upon verifying that the unsubscription process had not been managed correctly by the entity complained against, they sent an email requesting unsubscription to the address allzoners@allzone.es. According to the entity being complained against, this email address (allzoners@allzone.es) is a no-reply email that only sends commercial communications and does not receive information, so they could not manage the unsubscription. However, it can be read in the advertising emails sent the following:

AllZone July 6, 2023, 15:11

Reply to: allzoners@allzone.es

To: ***EMAIL.1

It can be verified that at no time is it indicated to users that the email allzoners@allzone.es is a "no-reply" email; on the contrary, as can be read in the header of the emails, it states: "Reply to: allzoners@allzone.es."

The entity being complained against states that in the proposed resolution "the following has not been taken into account, especially point 4, which indicates how the user has the possibility to subscribe and unsubscribe from our newsletter and associated offers as many times as they want by entering their client area, and we understand that this has been the reason for the interruption and renewal in the sending of commercial communications..."

Along with the statement of allegations, the entity being complained against presents a screenshot, which appears to be the claimant's record showing the "subscription/unsubscription" statuses of the claimant:

Date

Status

25/03/23

subscribed

06/07/23

unsubscribed

10/07/23

subscribed

21/07/23

unsubscribed

28/07/23

subscribed

13/09/23

unsubscribed

Stating that the advertising emails were sent to the claimant when they were "subscribed" in the system.

Notwithstanding the above, from the email sent by the claimant on 21/07/23 to the address allzoners@allzone.es, it is clear that their desire was not to receive any more newsletters via email and that they had attempted to do so on two previous occasions without the entity having correctly managed the definitive unsubscription:

"Good afternoon, I have unsubscribed from your newsletter distribution list twice because I do not want to continue receiving emails. In

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In both cases, it has been futile because they have ignored it and continued sending me emails. I indicate through this means that I do not wish to continue receiving their commercial communications. Thank you and best regards."

The respondent claims that the email address allzoners@allzone.es is a "no-reply" address, and therefore could not process the unsubscribe request. However, as can be read verbatim in the headers of the sent emails, it states: "Reply to: allzoners@allzone.es," with no other information indicating that this address is "no-reply" and cannot be used to contact the entity.

III

Prohibition of unsolicited or expressly authorized commercial communications

The LSSI prohibits unsolicited or expressly authorized commercial communications, based on a concept of commercial communication that is classified as a service of the information society and defined in its Annex as: "f) Commercial communication": any form of communication aimed at the promotion, directly or indirectly, of the image or of the goods or services of a company, organization, or person engaged in commercial, industrial, artisanal, or professional activity.

Therefore, the concept of commercial communication, according to the previous definition, encompasses all forms of communications intended to promote directly or indirectly goods, services, or the image of a company, organization, or person with a commercial, industrial, artisanal, or professional activity.

On the other hand, the LSSI in its Annex a) defines "Service of the Information Society" as "any service normally provided for a fee, at a distance, by electronic means and at the individual request of the recipient."

The concept of "Service of the Information Society" also includes services not paid for by their recipients, insofar as they constitute an economic activity for the service provider."

According to section d) of the aforementioned Annex, the recipient is the "natural or legal person who uses, whether or not for professional reasons, a service of the information society."

IV

Classification of the committed infringement

The fact that the respondent sends advertising emails to the claimant after she has requested not to receive them again constitutes a violation of what is established in Article 21 of the LSSI, as it states the following:

"1. The sending of advertising or promotional communications by email or other equivalent electronic communication means that have not been previously requested or expressly authorized by the recipients is prohibited.

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2. The provisions of the previous section shall not apply when there is a prior contractual relationship, provided that the provider has lawfully obtained the contact details of the recipient and uses them to

send commercial communications regarding products or services of its own company that are similar to those initially contracted with the customer.

In any case, the provider must offer the recipient the possibility of opposing the processing of their data for promotional purposes through a simple and free procedure, both at the time of data collection and in each of the commercial communications sent to them.

When communications have been sent by email, this means must necessarily consist of the inclusion of an email address or another valid electronic address where this right can be exercised, and the sending of communications that do not include such an address is prohibited.”

V

Graduation of Sanction

The aforementioned infringement is classified as “minor” in Article 38.4.d) of said regulation, which qualifies as such, “The sending of commercial communications by email or other equivalent electronic communication means when the requirements established in Article 21 are not met and do not constitute a serious infringement.”

According to what is established in Article 39.1.c) of the LSSI, minor infringements may be sanctioned with a fine of up to €30,000.

Based on the evidence obtained, and without prejudice to the outcome of the instruction, it is considered appropriate to graduate the sanction to be imposed according to the following aggravating criteria, established in Article 40 of the LSSI:

- The existence of intent (section a), since the claimant had requested that no further commercial communications be sent to her, and the respondent had acknowledged receipt of that request, confirming that it had been attended to, and despite this, subsequently sent her a new advertising email.

In accordance with these criteria, it is deemed appropriate to impose a sanction of €5,000 (five thousand euros) for the infringement of Article 21.1 of the LSSI, without prejudice to the outcome of the instruction of the procedure.

RESOLVES:

FIRST: TO IMPOSE on the entity, ALL IN DIGITAL MARKETING SL, with CIF: B88369178, for infringement of Article 21 of the LSSI, classified in Article 38.4.d) of the aforementioned regulation, a fine of €5,000 (five thousand euros).

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SECOND: NOTIFY this resolution to ALL IN DIGITAL MARKETING SL, with CIF: B88369178,

THIRD: Warn the sanctioned party that they must comply with the imposed sanction once this resolution becomes executive, in accordance with the provisions of art. 98.1.b) of Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations (hereinafter LPACAP), within the voluntary payment period established in art. 68 of the General Collection Regulation, approved by Royal Decree 939/2005, of July 29, in relation to art. 62 of Law 58/2003, of December 17, by making the payment, indicating the NIF of the sanctioned party and the procedure number that appears in the heading of this document, to the restricted account

No. IBAN: ES00-0000-0000-0000-0000-0000 (BIC/SWIFT Code: CAIXESBBXXX), opened in the name of the Spanish Agency for Data Protection at the banking entity CAIXABANK, S.A.

Otherwise, collection will proceed during the executive period. Upon receipt of the notification and once it is executive, if the date of executiveness falls between the 1st and the 15th of each month, both inclusive, the deadline for voluntary payment will be until the 20th of the following month or the next business day thereafter, and if it falls between the 16th and the last day of each month, both inclusive, the payment deadline will be until the 5th of the second following month or the next business day thereafter.

In accordance with the provisions of article 50 of the LOPDGDD, this Resolution will be made public once it has been notified to the interested parties.

Against this resolution, which concludes the administrative procedure in accordance with art. 48.6 of the LOPDGDD, and in accordance with the provisions of article 123 of the LPACAP, the interested parties may optionally file a motion for reconsideration before the Director of the Spanish Agency for Data Protection within one month from the day following the notification of this resolution or directly file an administrative contentious appeal before the Contentious-Administrative Chamber of the National Court, in accordance with the provisions of article 25 and section 5 of the fourth additional provision of Law 29/1998, of July 13, regulating the Contentious-Administrative Jurisdiction, within two months from the day following the notification of this act, as provided in article 46.1 of the aforementioned Law. Finally, it is noted that in accordance with the provisions of art. 90.3 a) of the LPACAP, the firm resolution in the administrative procedure may be provisionally suspended if the interested party expresses their intention to file an administrative contentious appeal. If this is the case, the interested party must formally communicate this fact by means of a written document addressed to the Spanish Agency for Data Protection, submitting it through the Electronic Registry of the Agency [<https://sedeagpd.gob.es/sede-electronicaweb/>], or through any of the other registries provided for in art. 16.4 of the aforementioned Law 39/2015, of October 1. They must also provide the Agency with documentation that proves the effective filing of the administrative contentious appeal. If the Agency does not become aware of the filing of the administrative contentious appeal within two months from the day following the notification of this resolution, it will consider the provisional suspension terminated.

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